2026 Indiana Election Legislation Summary

Prepared by the Indiana Election Division

This document summarizes the election-related legislation that passed the Indiana General Assembly and became law in 2026. Bills may be obtained by contacting the Legislative Information Center at 200 West Washington Street, Room 230, Indianapolis, Indiana 46204-2731; (317) 232-9856, or by downloading documents from the General Assembly's website at www.iga.in.gov.

This document is intended to serve as an overview of information concerning Indiana election laws. Although the Election Division makes every effort to ensure the accuracy of the information in this document, **where your legal rights are involved, do not rely on this document. Instead, review the law yourself or consult with your attorney.**

The 2026 Regular Session of the Indiana General Assembly enacted the following election-related bills and joint resolutions:

Public Law 4-2026 (Senate Enrolled Act 3): Constitutional Amendment Ballot Language
Public Law 5-2026 (Senate Enrolled Act 12): Prohibition of Ranked Choice Voting
Public Law 7-2026 (Senate Enrolled Act 25): School Board Candidates
Public Law 12-2026 (Senate Enrolled Act 112): Candidacy Documents
Public Law 18-2026 (House Enrolled Act 1019): Constitutional Amendment Ballot Question
Public Law 47-2026 (Senate Enrolled Act 233): Powers and Duties of the Election Commission
Public Law 68-2026 (Senate Enrolled Act 113): Election Matters
Public Law 76-2026 (House Enrolled Act 1033): Various Judicial Matters
Public Law 77-2026 (House Enrolled Act 1038): Gaming Matters
Public Law 99-2026 (House Enrolled Act 1377): Straight Ticket Voting
Public Law 164-2026 (Senate Enrolled Joint Resolution 1): Constitutional Amendment Concerning Bail

The following bills made other amendments (generally technical, but some substantive) to election statutes or areas that affect election law:

Public Law 23-2026 (House Enrolled Act 1088): Technical Corrections
Public Law 40-2026 (House Enrolled Act 1161): Local Government Matters
Public Law 91-2026 (House Enrolled Act 1302): Various Labor and Safety Matters
Public Law 94-2026 (House Enrolled Act 1343): Public Safety Matters
Public Law 97-2026 (House Enrolled Act 1360): Access to Public Records

INDIANA CONSTITUTIONAL AMENDMENTS

Limitations on the Right to Bail

In 2023 and 2025 the General Assembly adopted a joint resolution proposing to amend Article 1, Section 17 of the Constitution of the State of Indiana to change the standard for who is eligible for bail after being charged with a crime. The amendment would allow the court to restrict bail to a person charged with a crime when the accused poses a substantial risk to any other person or the community. An offense other than murder or treason shall not be bailable if: (1) the proof is evident or the presumption strong; and (2) the state proves by clear and convincing evidence that no release conditions will reasonably protect the safety of any other person or the community.

This proposed amendment has been agreed to by the 123rd and 124th General Assembly. Therefore, the next step to amend the state constitution is to submit the proposed amendment to the state's voters for ratification. The amendment will take effect if ratified by a majority of the state's voters voting on the amendment as a public question on the ballot at the November 3, 2026, general election.

The text of the public question will read as follows:

"Public Question #1

Currently, under the Constitution of the State of Indiana, a person charged with murder or treason is not entitled to be released on bail if the proof is evident or the presumption strong. Shall the Constitution of the State of Indiana be amended to provide that a person charged with an offense other than murder or treason is not entitled to bail if:

(1) the proof is evident or the presumption strong; and

(2) the state proves by clear and convincing evidence that no release conditions will reasonably protect the safety of any other person or the community.

(This question concerns Article 1, Section 17 of the Constitution of the State of Indiana.)"

(SEJR 1)
(SEA 3 § 1; Effective Date: July 1, 2026; Citations affected Noncode)

Residence for Town and City Court Judges

In 2023 and 2025 the General Assembly adopted a joint resolution proposing to amend Article 6, Section 6 of the Constitution of the State of Indiana to allow a judge of a city or town court to live in the county where the court is located or the bordering Indiana county that is the closest Indiana county to the city or town in which the court is located, calculated by measuring the shortest distance from the city or town limits to the county line.

This proposed amendment has been agreed to by the 123rd and 124th General Assembly. Therefore, the next step to amend the state constitution is to submit the proposed amendment to the state's voters for ratification. The amendment will take effect if ratified by a majority of the state's voters voting on the amendment as a public question on the ballot at the November 3, 2026, general election.

The text of the public question will read as follows:

"Public Question #2

Shall the Constitution of the State of Indiana be amended to permit the judge of a city or town court to reside in: (1) the county in which the court is located; or (2) the bordering county closest to the city or town in which the court is located? (This question concerns Article 6, Section 6 of the Constitution of the State of Indiana.)"

(HEA 1019 § 1; Effective Date: July 1, 2026; Citations affected Noncode)
(SEA 80 § 283; Effective Date: July 1, 2026; Citations affected Noncode)